

SHREYA SINGHAL VS. UNION OF INDIA

Case Study – 7

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Introduction:

The case Shreya Singhal vs. Union of India is an important case related to freedom of speech on the internet. The case was decided by the Supreme Court of India on 24 March 2015. Shreya Singhal challenged Section 66A of the Information Technology Act, 2000. The case deals with Freedom of Speech, Social Media and Internet Law. This case became important because social media had become a major platform for people to share their opinions. The judgment helped to protect people from unreasonable restrictions on online communication.

Facts of the Case:

- i. In 2012, political leader Bal Thackeray died.
- ii. After his death, many shops and businesses in Mumbai were closed.
- iii. Shaheen Dhada posted her opinion about the shutdown on Facebook.
- iv. Her friend Rinu Srinivasan liked the Facebook post.
- v. The police arrested both women under Section 66A of the Information Technology Act, 2000.
- vi. The arrest created a public debate about freedom of speech on social media.
- vii. Shreya Singhal, a law student, challenged Section 66A before the Supreme Court.
- viii. She argued that Section 66A violated the fundamental right to freedom of speech under Article 19(1)(a).

ix. She also argued that words like “annoying” and “offensive” were vague and unclear.

x. The Supreme Court examined the validity of Section 66A and later struck it down on 24 March 2015.

Legal Issue :

The main questions in this case were:

1. Does Section 66A violate the right to freedom of speech?
2. Can a person be punished for expressing an opinion on the internet?
3. Were the words used in Section 66A clear and properly defined?
4. Was Section 66A a reasonable restriction under Article 19(2)?

Judgement:

- The Supreme Court gave its judgment on 24 March 2015.
- The Court struck down Section 66A of the Information Technology Act completely.
- The Court said that Section 66A was vague and overbroad.
- Section 66A violated the fundamental right to freedom of speech and expression under Article 19(1)(a).
- The Court explained the difference between Discussion, Advocacy and Incitement.
- The judgment became an important decision for protecting freedom of speech and expression on the internet.

Legal Principles:

- Freedom of speech and expression is a fundamental right under Article 19(1)(a).
- Laws restricting freedom of speech must be clear and reasonable.
- Vague words in criminal laws should not be used to punish people.
- Online communication is also protected under the right to freedom of speech.
- Discussion and advocacy are protected, while speech reaching the level of incitement may be restricted according to law.

Business Relevance:

- ✓ Businesses use social media and digital platforms to communicate with customers.
- ✓ Customers can share their opinions, feedback and reviews about products and services.
- ✓ Online comments can affect the reputation and goodwill of a business.
- ✓ Social media is widely used for advertising, promotion and customer interaction.
- ✓ Businesses must follow applicable laws while using digital platforms and communicating online.

Conclusion:

The case Shreya Singhal vs. Union of India is an important case in Indian Constitutional and Cyber Law. It shows that people have the right to express their opinions on the internet. The Supreme Court struck down Section 66A because it was vague and violated the fundamental right to freedom of speech under Article 19(1)(a). The case is also important for businesses because social media and digital communication are widely used in modern business. Overall, this judgment strengthened freedom of speech and expression in the digital age.